



PLANNING &
DEVELOPMENT

2101 O'Neil Avenue
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cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Morgan Dennis
Subject: PUDC-26-25 Harmony Valley Apartments – Zoning Map Amendment
Date: March 4, 2026

Background:

The item for consideration is a Zoning Map Amendment (zone change). This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 3/9/2026
- Public Services Committee 3/16/2026
- Second reading 3/23/2026
- Public Services Committee 4/6/2026
- Third and final reading 4/13/2026

Planning Commission Recommendation:

The Planning Commission heard this item at their March 2, 2026, meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Public Comment

As of the creation of this memo (March 4, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 15 views and no comments.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE, CHANGING THE ZONING CLASSIFICATION FOR LAND LOCATED NORTH OF WEST COLLEGE DRIVE AND EAST OF SOUTH PARSLEY BOULEVARD FROM PUD HARMONY VALLEY PLANNED UNIT DEVELOPMENT TO NR-3 NEIGHBORHOOD RESIDENTIAL – HIGH DENSITY."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of certain real property located north of West College Drive and east of South Parsley Boulevard has applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on March 2, 2026, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned zoning map amendment application is hereby approved and the zoning classification of the real property described as Lot 1, Block 1, Harmony Valley, 4th Filing, Cheyenne, Wyoming, is hereby changed to NR-3 Neighborhood Residential – High Density.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

CITY OF CHEYENNE

PLANNING & DEVELOPMENT

CITY OF CHEYENNE PLANNING COMMISSION

March 2, 2026

STAFF REPORT

FILE: **PUDC-26-25: Lot 1, Block 1, Harmony Valley 4th Filing– Zoning Map Amendment (zone change)**

REQUEST: A request to rezone approximately 6.50 acres of land from Harmony Valley PUD to NR-3 Neighborhood Residential – High Density.

LOCATION: Northeast of the intersection of South Parsley Boulevard and West College Drive

APPLICANT: John Sayers

AGENT: John Sayers

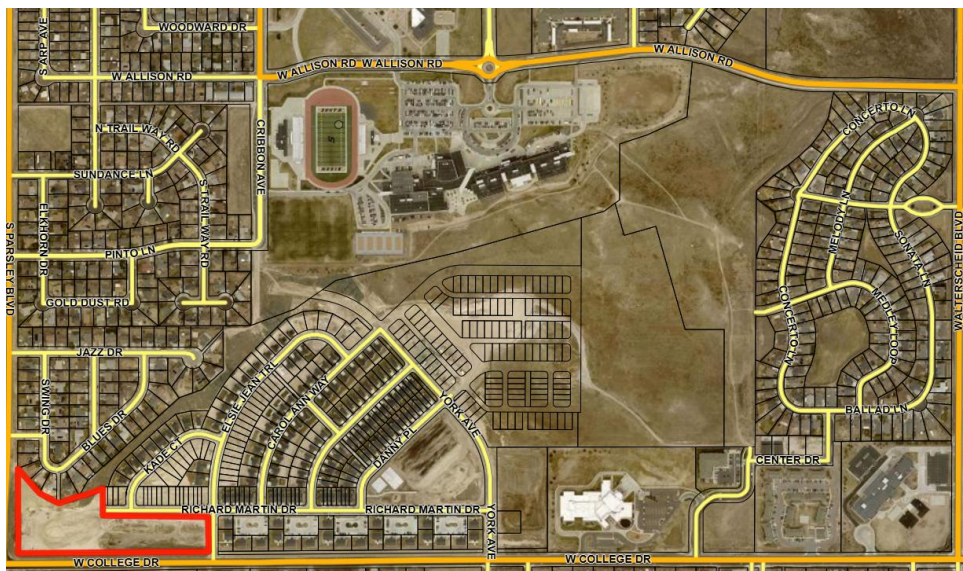
OWNER: Tru Grit Land Development LLC

ZONING: Harmony Valley PUD

FUTURE LAND USE: Mixed-Used Commercial

PURPOSE: Remove this parcel from the Harmony Valley PUD and change to NR-3 zone.

PREPARED BY: Morgan Dennis, Planner I



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 1, Block 1, Harmony Valley 4th Filing to NR-3 Neighborhood Residential – High Density as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from Harmony Valley PUD to NR-3 Neighborhood Residential – High Density for roughly 6.50 acres of land. The land is currently vacant. The PUD allowed for high-density residential at this location, but limited the total number of units. Rather than amend the PUD to extend the unit cap, the applicant has instead requested a zone change to a high-intensity residential zone.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-Use Commercial	Harmony Valley PUD	Vacant
North	Urban Residential, Mixed-Use Commercial	MR Medium Density Residential, Harmony Valley PUD	Single-family Residential, duplexes, townhouses
South	Urban Residential	County LU Land Use	Vacant (possibly agriculture)
East	Mixed-Use Commercial	Harmony Valley PUD	Multifamily Residential
West	Mixed-Used Employment	County LI Light Industrial	Industrial

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages opportunities for commercial and high-intensity residential growth within this area under this designation.

The Future Land Use Designation for this property is Mixed-Use Commercial. According to the comprehensive plan, this designation supports more commercial, light industrial, or live-work developments that could be "activity centers". Residential use may be added to these areas in order to bring in more activity, but their development should be secondary to potential commercial development in the area. If residential developments are within the Mixed-Use Commercial area, there should be more than 8 dwelling units per acre. The ideal location for activity center is along principal arterial or minor arterial streets. This lot is located at the intersection of South Parsley Boulevard and West College Drive, two arterial streets. This results in higher volume of traffic than might be desired in residential areas.

The optimal zone for this area is MUB Mixed-use Business Emphasis, although a mix of commercial and high-intensity residential zones may also accomplish the comprehensive plan objectives. Based on the policies and future land use map, NR-3 is not the most appropriate zone for this area. The corridor is lacking in commercial zoning, and the mixed-use zone (within the PUD) to the east is already developed without commercial uses. The MUB zone in the UDC is essentially a combination of NR-3 and NB zones, the MUB even uses NR-3 lot types and residential design standards for purely residential development. Essentially, the proposed NR-3 zone is the residential half of the optimal MUB zone.

PlanCheyenne also supports flexibility to adjust to market demands and supports development of housing to meet demands, preferably with a variety of types and with access to amenities. Housing is needed in the Cheyenne, and this location has access to amenities and would allow for a variety of housing options.

The proposed zone change largely **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

The proposed NR-3 zone would be isolated to this lot. To the north of the property is a combination of MR Medium Density Residential and Harmony Valley PUD. The Harmony Hill neighborhood is the residential north of this parcel. This development is comprised mostly of single-family dwelling units. East and northeast of this parcel is land zoned for Harmony Valley PUD, which it is currently being developed with duplexes, townhouses and multifamily development. To the south of the site is County Land Use, the land is vacant. To the west is County Light Industrial which has industrial operation on the land currently. The proposed NR-3 zone is similar to the allowed uses of the Harmony Valley PUD to the east and northeast.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The NR-3 zone is a less intense zone than the existing zone. The PUD designates this area as High Density Residential within the PUD. This designation within the PUD allows for high density residential developments and commercial developments that would be allowed by right within the CB zone. The NR-3 would only allow for residential development to be permitted developments. While the current Harmony Valley allows for commercial uses, it also limits the total number of residential units. By shifting from Harmony Valley PUD to NR-3, the property is losing the ability to develop commercially, but gaining the ability to add more residential dwelling units.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

No changes to the street network are proposed. Accesses will not be changed with the zone change. Infrastructure (streets and utilities) exist in the area. Water and sewer will likely need to be extended to the area.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The NR-3 district is intended to be used for high-density, urban residential use with consistent neighborhood charact. The regulations are meant to protect the neighborhood character of the district and protect the primarily residential use of land.

The applicability to areas where more compact neighborhood development patterns are desired, specifically the Urban Residential category in the Cheyenne Comprehensive Plan.

Typically, this district is located no more than ¼ mile or up to four blocks from any existing or planned Activity Center. Isolated application of this district without adjacency to activity center should be avoided so that significant concentrations of density do not exist without walking access to non-residential uses and quality urban amenities. This district should be supported by a highly connected street network with street design types that have a high degree of pedestrian amenities.

The proposed zone is exchanging the Harmony Valley PUD for NR-3. The PUD outlines this area is to be High Density Residential. This designation allows for more intense development than the NR-3 zone allows. This parcel is not located near a commercial activity center, but is close to Harmony Valley's park, various schools, and some limited commercial development south of

College. There are also employment centers to the west and northwest of this parcel, but due to topography and development patterns are not truly walkable destinations at this time.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The proposed NR-3 zone would limit allowable development action within this area. The current zoning of Harmony Valley PUD designates this area High Density Residential, which under the PUD, allows for residential and commercial developments to be permitted by right. Changing to the zone NR-3 would lessen uses allowed to be built at this intersection. However, the PUD has a unit cap in the residential area, and changing to NR-3 allows for more flexible residential development.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No major comments received in regard to the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, review comments were received expressing the appropriateness of the NR-3 zone at this location, although the MUB zone would be optimal.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The NR-3 zone is appropriate based on the future land use map, surrounding zoning, surrounding development patterns, and proposed development.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

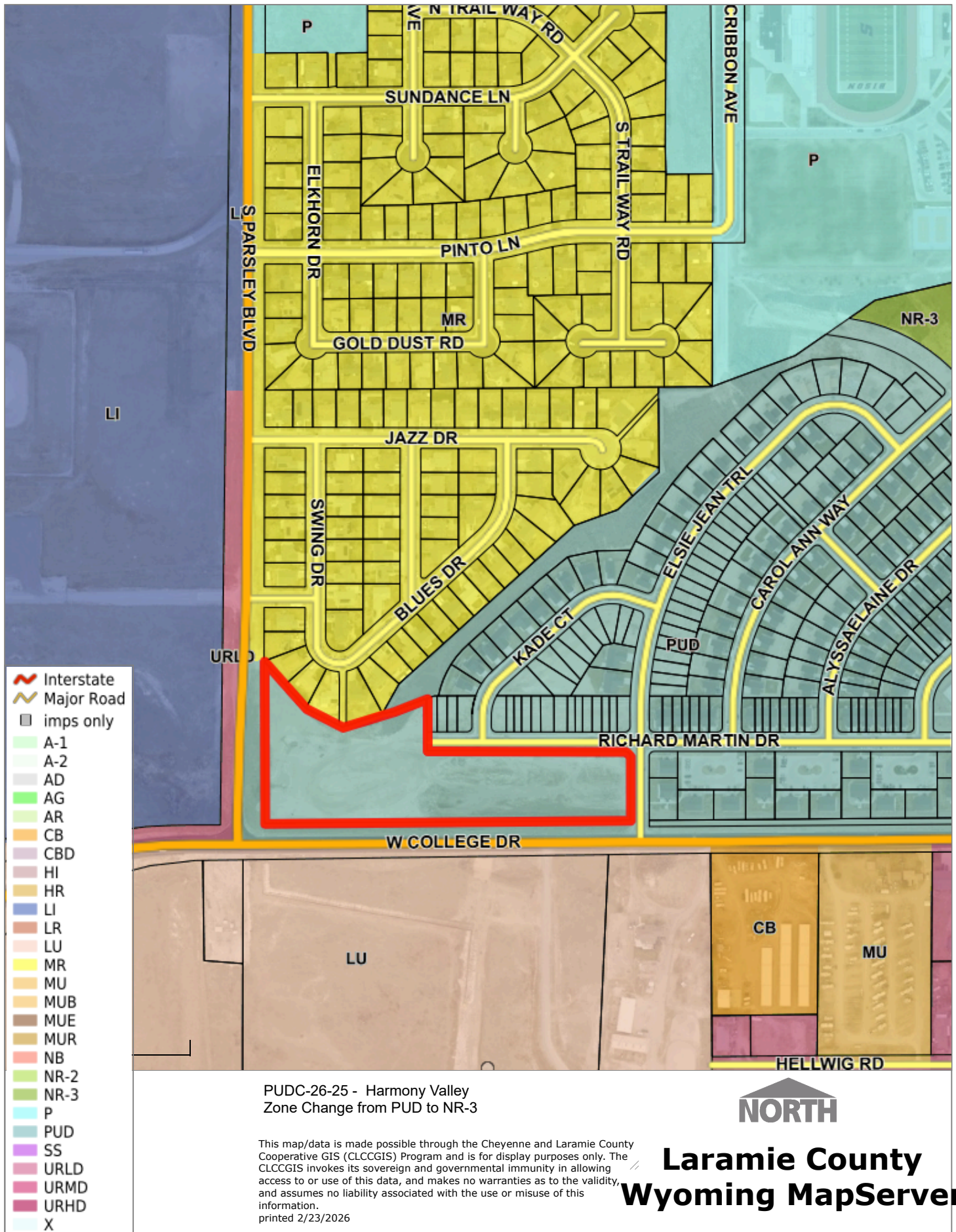
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

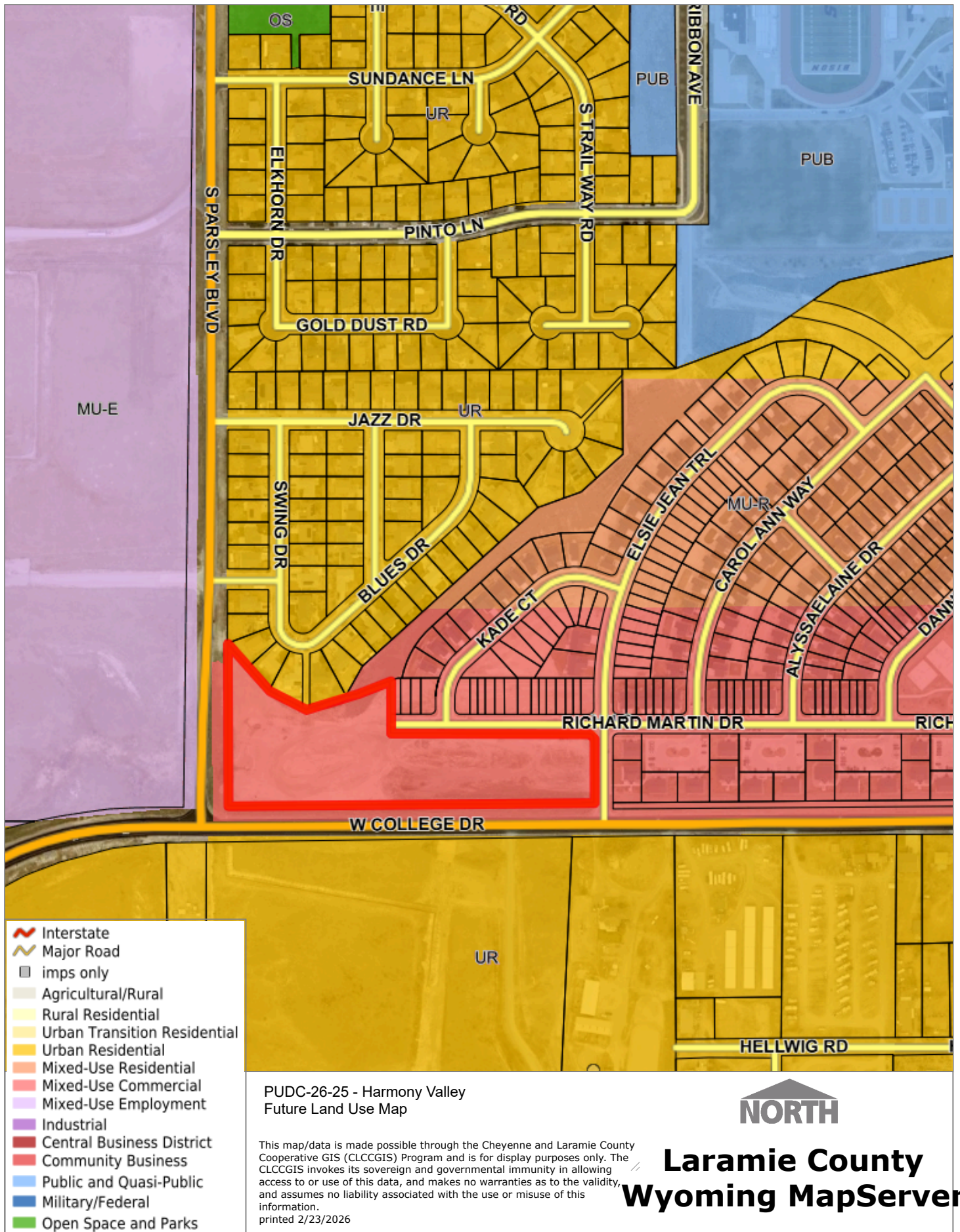
STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from Harmon Valley PUD to NR-3.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map





C* Cheyenne, WY

February 23, 2026

Record No: PUDC-26-25

Zoning Map Amendment

Status: Active

Submitted On: 2/4/2026

Primary LocationO RICHARD MARTIN DR
Cheyenne, WY 82007**Owner**TRU GRIT LAND DEVELOPMENT LLC
WALTERSCHEID BLVD 140 CHEYENNE, WY
82007

Staff use**Staff Report ready for publication** ☐**Final Decision ready for publication** ☐**City Initiated** ☐

Application

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Project Name* 

HARMONY VALLEY APARTMENTS

Proposed Zoning* NR-3 Neighborhood Residential – High
Density**Project Description or notes** 

We are proposing removing this property from the PUD and requesting the
property be Zoned NR-3.

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

John Sayers
Feb 4, 2026

Attachments

	Draft Neighbor Notification Letter LTR to Neighbors.pdf Uploaded by John Sayers on Feb 4, 2026 at 5:17 PM	REQUIRED
	Neighbor Notification List Adjacent residents to notify.pdf Uploaded by John Sayers on Feb 4, 2026 at 5:21 PM	REQUIRED
	Photos of Posted Notice 20260220_142757.jpg Uploaded by John Sayers on Feb 20, 2026 at 3:24 PM	
	PUDC 26-25_26-27 Schedule Letter PUDC 26-25_26-27 Application Letter.pdf Uploaded by Morgan Dennis on Feb 6, 2026 at 10:58 AM	
	Picture #2 20260220_143428.jpg Uploaded by John Sayers on Feb 20, 2026 at 3:25 PM	



picture #3

20260220_143819.jpg

Uploaded by John Sayers on Feb 20, 2026 at 3:26 PM



Letter of Authorization

Letter of Authorization Signed.pdf

Uploaded by John Sayers on Feb 4, 2026 at 5:16 PM

REQUIRED



Proposed Zoning Map

ZC for HV Apartments ZC.pdf

Uploaded by John Sayers on Feb 4, 2026 at 5:17 PM

REQUIRED

